

Court No. - 40

Case :- WRIT - C No. - 36201 of 2022

Petitioner :- Omkar Baranval

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gaurav Vishwakarma, Suman Kumar Yadav

Counsel for Respondent :- CSC, Chetan Chatterjee

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and Shri Chetan Chatterjee, learned counsel for Power Corporation.

The present writ petition is preferred assailing the validity of the impugned demand notice dated 23.12.2020 issued by Executive Engineer, Vidyut Vitaran Khand-Phoolpur, Azamgarh-respondent no.3.

The matter relates to electricity theft.

Shri Chetan Chatterjee, learned counsel for Power Corporation raised a preliminary objection on the maintainability of the writ petition on the ground that the writ petition has been preferred with delay and laches. The provisional assessment took place on 28.12.2020 and consequently the final assessment has also taken place in the year 2022. Against the final assessment, the petitioner has got efficacious remedy to file an appeal under Section 127 Electricity Act 2003 and as such, once the efficacious remedy is available there is no reason or occasion to entertain the writ petition at this stage.

The Court has raised a pointed query whether the final assessment order has been served upon the petitioner or not.

Shri Chetan Chatterjee, learned counsel for the Power Corporation prays for and granted a week's time to obtain instructions in the matter. While seeking instructions, he may also obtain the final assessment order and place the same when the matter is listed next.

Put up as fresh on 09.01.2023 before appropriate Court.

Order Date :- 2.1.2023

A. Pandey

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Counsel for Respondent :- CSC, Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

Supplementary affidavit filed today is taken on record.

Instant petition has been filed praying for quashing of the demand notice dated 23.12.2020 issued by respondent No. 3 for recovery of electricity dues to the tune of Rs. 2,10,012/-

Learned counsel appearing on behalf of the Electricity Department states that the demand notice has been issued on basis of a final assessment order dated 25.7.2020, it being a case of theft of electricity. He has placed on record for our perusal a copy of the final assessment order.

We find that the final assessment order, which is dated 25.7.2020 is a non-speaking order. It does not even mention whether any objection has been filed by the petitioner against the provisional assessment order or not. No satisfaction has been recorded therein that the theft has been established. The order does not mention whether any hearing took place on 13.6.2020, the date fixed in this behalf. Learned counsel for the Electricity Department is also unable to clarify whether the final assessment order was served upon the petitioner or not. He fairly states that respondent No. 3 will pass a fresh order after complying with the provisions laid down under the UP Electricity Supply Code, 2005.

Accordingly, we quash the impugned notice but with liberty reserved in favour of respondent No. 3 to proceed in the matter afresh in accordance with law.

The writ petition stands disposed of.

Order Date :- 9.1.2023

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